

## **JUSTIFICATION AND APPROVAL OTHER THAN FULL AND OPEN COMPETITION**

### **1. Identification of the agency and the contracting activity.**

This justification is executed by the Naval Medical Research Command (NMRC), Silver Spring, MD, on behalf of the Navy to meet Navy Expeditionary Medical Research requirements.

### **2. Nature and/or description of the action.**

This is a request to purchase numerous S-plex Panel Assay kits from MesoScale Discovery (MSD) and the buffer and diluents needed to run the kits. These kits are a new, proprietary technology available from MSD. The S-plex is an ultrasensitive assay platform to dramatically improve the sensitivity of immunoassays. These kits will be used to measure biomarkers of neurotrauma in different tissue types in both humans and animal models as part of both ongoing and future studies. Staff at the Neurotrauma Department (NTD) are familiar with these assays, and have been trained by company representatives on this new platform.

### **3. Description of Supplies or Services:**

[REDACTED]

The S-plex system is an ultrasensitive assay platform from MSD. It dramatically improves the sensitivity of immunoassays, reducing the lower limit of detection by 10-to 1000-fold over other assay methods. Detection limits in the low femtogram/mL range are common. These low detection limits enable the measurement of analytes at lower concentrations, reduce required sample volume, and reduce critical reagent use. The Neurology Panel and Pro-inflammatory panels comes as a multiplex panel, where multiple biomarkers can be measured on the same plate. We will also acquire single-plex panels that will measure one analyte with high sensitivity including panels for various chemokines and cytokines relevant to neurotrauma. This sensitivity and the multiplex format allows for more assays to be run while using up less sample volume, maximizing the information that comes from each sample. The lower detection limits are crucial to identifying biomarkers of interest to neurotrauma even in small amounts.

### **4. Identification of the statutory exceptions permitting other than full and open competition.**

The statutory exception permitting other than full and open competition for this acquisition is 10 U.S.C. 2304(c)(1) and FAR 6.302-1 sole source (including brand name) acquisitions or FAR 13.106-1(b)(1) soliciting from a single source.

**5. Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.**

Meso Scale Discovery is the original manufacturer of this assay. This assay uses proprietary techniques and is the only available assay kit on the market that can measure these biomarkers at this level of sensitivity. MSD is the only company available to provide these kits, as found using a Google search.

**6. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable.**

Market research was performed, the results of which are in paragraph 8. This requirement will be posted to the government point of entry in accordance with FAR 5.202.

**7. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.**

The Contracting Officer shall determine the anticipated cost to the Government of the supplies/services covered by this Justification and Approval will be fair and reasonable by conducting a price analysis before an award is made.

**8. Description of the market survey conducted and the results, or a statement of the reasons a market survey was not conducted.**

A Google search was performed in April, 2026. Meso Scale Discovery is the sole manufacturer of this assay and of assays of this type for the biomarkers of interest. Four other companies were contacted to determine whether they had supplies necessary to complete an assay for these biomarkers with this sensitivity. [REDACTED]

[REDACTED]

**9. Other facts supporting the use of other than full and open competition.**

Researchers within the Neurotrauma Department are familiar with the MSD assay system and have received hands-on, onsite training with the S-plex system from experts from MSD. The Neurotrauma department has the necessary hardware and software to run these assay from previous experiments.

**10. Listing of Sources, if any, which expressed, in writing, an interest in the acquisition.**

To date, no other sources have written to express an interest.

**11. Statement of actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.**

Future requirements will be synopsized in accordance with FAR 5.203.

For the reasons set forth in Paragraph 5, the Neurotrauma Department has no plans at this time to compete future contacts for the types of supplies/services covered by this document. If another potential source emerges, NMRC will assess whether competition for future requirements are feasible.

**12. Point of Contact:**

The point of contact at the Naval Medical Research Command, Silver Spring, MD, regarding the contents of the sole source justification are the Contracting Officers in the Material Management Department (MMD) and can be reached by emailing [usn.detrick.nmrc.mbx.mmd-contracts@health.mil](mailto:usn.detrick.nmrc.mbx.mmd-contracts@health.mil).

**TECHNICAL AND REQUIREMENTS CERTIFICATION REQUIRED**  
**BY NAVSUP 4200.83 series**

I certify that the facts and representations under my cognizance which are included in this justification and approval and which form a basis for this justification are complete and accurate.

Technical Cognizance

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301-319-7480

Dr. Stephen Ahlers  
Department Head

Phone

Date

En Route and Critical Care Department/NMRC

Requirements Cognizance

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Name

Phone

Date

Title

Department/Command

**CONTRACTING OFFICER CERTIFICATION**

I certify that this justification is accurate and complete to the best of my knowledge.

|                     |                |          |
|---------------------|----------------|----------|
|                     | (301) 319-9948 | 5/4/2026 |
| Contracting Officer | Phone          | Date     |